

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Carlo Vescovi	Team: Squad #14	CCRB Case #: 202306957	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 07/27/2023 8:00 PM, Thursday, 07/27/2023 8:30 PM	Location of Incident: 60 Moore Street, 90th Precinct Stationhouse	18 Mo. SOL 1/27/2025	Precinct: 90		
Date/Time CV Reported Fri, 07/28/2023 10:54 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 07/28/2023 10:54 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Kevin Sandoval	29504	973757	090 PCT
2. PO Eleni Karagkouni	05241	972718	090 PCT
3. SGT Andrew Hong	01035	953972	090 PCT
4. PO Jeremy Alexander	25808	968928	090 PCT
5. SGT Pasquale Pellegrino	03494	904768	090 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Frank Vazquez	30741	973830	090 PCT
2. PO Edward Serratacaba	06122	972951	090 PCT
3. PO Jesse Wong	30315	973854	090 PCT
4. PO Kathy Debesse	23276	971896	090 PCT
5. PO Jonathan Lebowitz	27554	972060	090 PCT
6. PO Charles Novak	22063	962641	090 PCT
7. PO Shazana Zaman	25125	970336	090 PCT
8. PO Luis Sandres	04509	964752	090 PCT
9. LT Timothy Fox	00000	944571	090 PCT
10. DTS Francisco Martireyes	05255	951972	090 PCT
11. PO Eric Chau	00197	961684	090 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Kevin Sandoval	Discourtesy: At 60 Moore Street in Brooklyn, Police Officer Kevin Sandoval spoke discourteously to § 87(2)(b)	A . Unfounded
B . PO Kevin Sandoval	Abuse: At 60 Moore Street in Brooklyn, Police Officer Kevin Sandoval frisked § 87(2)(b)	B . Substantiated
C . PO Jeremy Alexander	Abuse: At 60 Moore Street in Brooklyn, Police Officer Jeremy Alexander damaged § 87(2)(b) property.	C . Unfounded
D . PO Eleni Karagkouni	Abuse: At 60 Moore Street in Brooklyn, Police Officer Eleni Karagkouni interfered with § 87(2)(b) use of a recording device.	D . Substantiated
E . SGT Andrew Hong	Abuse: At 60 Moore Street in Brooklyn, Sergeant Andrew Hong threatened to issue a summons to § 87(2)(b)	E . Unfounded
F . PO Jeremy Alexander	Abuse: At 60 Moore Street in Brooklyn, Police Officer Jeremy Alexander failed to provide § 87(2)(b) with a business card.	F . Unfounded

Officer(s)	Allegation	Inv. Div. Recommendation
G . SGT Pasquale Pellegrino	Abuse: At the 90th Precinct stationhouse, Sergeant Pasquale Pellegrino did not process § 87(2)(b) complaint regarding an officer.	G . Miscellaneous - Subject Resigned

Case Summary

On July 28th, 2023, § 87(2)(b) filed the following complaint with the CCRB via phone.

On July 27th, 2023, at approximately 8:00pm, § 87(2)(b) was the sole occupant of his Nissan Altima coup driving near 60 Moore Street, in Brooklyn. Police Officers Kevin Sandoval and Frank Vazquez, of the 90th Precinct, conducted a vehicle stop of § 87(2)(b). During the vehicle stop, PO Sandoval allegedly used the word, “fuck,” towards § 87(2)(b) (**Allegation A: Discourtesy, unfounded**). PO Sandoval and PO Vazquez instructed § 87(2)(b) to step out of his vehicle and § 87(2)(b) complied, at which time PO Sandoval frisked § 87(2)(b) pants pockets, waist, and legs (**Allegation B: Abuse of Authority, substantiated**). Police Officers Eleni Karagkouni, Edward Serratacaba, Jesse Wong, Jeremy Alexander, Kathy Debesse, Jonathan Lebowitz, Charles Novak, Shazana Zama, Luis Sandres, Eric Chau, Detective Francisco Martireyes, Sergeant Andrew Hong, and Lieutenant Timothy Fox, all of the 90th Precinct, arrived on scene as back up. § 87(2)(b) filmed the incident on his cell phone, and PO Alexander removed the phone from his hand and placed it on the roof of § 87(2)(b) car, allegedly causing the screen to crack (**Allegation C: Abuse of Authority, unfounded**). PO Karagkouni then stopped § 87(2)(b) video recording by interacting with the digital interface of § 87(2)(b) phone (**Allegation D: Abuse of Authority, substantiated**). After a verbal argument wherein, § 87(2)(b) refused to take paper copies of his summonses, Sgt. Hong allegedly told § 87(2)(b) that he could get a ticket for littering if the summonses ended up on the ground (**Allegation E: Abuse of Authority, unfounded**). § 87(2)(b) requested a business card from PO Alexander, who failed to provide him with one (**Allegation F: Abuse of Authority, unfounded**). Immediately after the incident, § 87(2)(b) went to the 90th Precinct stationhouse, where he attempted to file a complaint against the officers with Sergeant Pasquale Pellegrino of the 90th Precinct. Sgt. Pellegrino refused to process § 87(2)(b) civilian complaint (**Allegation G: Abuse of Authority, miscellaneous – subject retired**).

§ 87(2)(b) received two VTL summonses for improper headlight use. No arrests resulted from this incident.

The investigation received BWC from PO Sandoval, PO Vazquez, PO Karagkouni, PO Serratacaba, PO Wong, PO Alexander, PO Debesse, PO Lebowitz, PO Novak, PO Zama, PO Sandres, PO Chau, Det. Martireyes, Sgt. Hong, Sgt. Pellegrino, and Lieutenant Fox, the relevant aspects of which are addressed in further detail below.

Findings and Recommendations

Allegation (A) Discourtesy: At 60 Moore Street in Brooklyn, Police Officer Kevin Sandoval spoke discourteously to § 87(2)(b)

Allegation (B) Abuse of Authority: At 60 Moore Street in Brooklyn, Police Officer Kevin Sandoval frisked § 87(2)(b)

The investigation established the following facts: At the time of the incident, PO Sandoval and PO Vazquez initiated a vehicle stop of § 87(2)(b) who was the sole occupant of a 2008 Nissan Altima coup. After PO Sandoval and PO Vazquez approached § 87(2)(b) refused to roll his window down past a certain point. PO Sandoval and PO Vazquez requested back up and instructed § 87(2)(b) to exit his vehicle. § 87(2)(b) exited and stood near the rear of his vehicle, during which time PO Sandoval frisked § 87(2)(b) over his shorts pockets, legs, and waist area. After approximately twenty more minutes, PO Sandoval wrote § 87(2)(b) two summonses for improper headlight use (BR 01). No arrests resulted from this incident.

§ 87(2)(b) testified (BR 02) that he wore a black t-shirt and jean shorts with front and back pockets. § 87(2)(b) had his wallet and possibly some cash in his right back pocket, and his keys on a hook on the right exterior side of his shorts. § 87(2)(b) testified that PO Sandoval used the word, “fuck,” during the traffic stop, but was unable to provide more context or specific details. After § 87(2)(b) exited his vehicle, PO Sandoval conducted a frisk of § 87(2)(b) legs, left and right front pockets, waistband, and chest.

PO Sandoval’s BWC (BR 03) captures the following: At 5:49 on the player timestamp, PO

Sandoval states, “Get out of the car. You keep moving around. My partner [PO Vazquez] is telling you to stop moving around.” At 7:23, additional officers instruct § 87(2)(b) to step out of the car, and after some back and forth, § 87(2)(b) complies. Upon stepping out of the vehicle, at 8:10, PO Sandoval conducts a frisk of § 87(2)(b) cargo pants front and back pockets, legs, and waist, during which point PO Sandoval is captured stating, “...since you kept moving,” (8:14). At no point on PO Sandoval’s BWC or any of the available video evidence is PO Sandoval captured saying, “Fuck.”

In his testimony (BR 04), PO Sandoval did not dispute frisking § 87(2)(b) legs, pant pockets, and waist, as captured on PO Sandoval’s BWC footage. Upon approaching the vehicle, PO Sandoval overheard PO Vazquez tell § 87(2)(b) to stop moving around, but PO Sandoval did not personally witness § 87(2)(b) movements. After § 87(2)(b) stepped out, PO Sandoval frisked § 87(2)(b) because § 87(2)(b) had been moving around in the car, which caused PO Sandoval safety concerns. PO Sandoval frisked those areas noted above specifically because, “They’re pockets,” (12:39) and PO Sandoval could not see inside them. PO Sandoval also noticed that § 87(2)(b) had a large bulge in his front left pants pocket, but could not provide additional details or observations. PO Sandoval did not make any other observations about the other areas that he frisked. PO Sandoval could not recall if he used the word, “fuck,” during this incident.

In *Arizona v. Johnson*, 555 U.S.323 (2009), (BR 05) the court found that in a traffic-stop setting, the first Terry condition – a lawful investigatory stop – is met whenever it is lawful for police to detain an automobile and its occupants pending inquiry into a vehicular violation. However, to justify a patdown of the driver or a passenger during a traffic stop, just as in the case of a pedestrian reasonably suspected of criminal activity, the police must harbor reasonable suspicion that the person subjected to the frisk is armed and dangerous.

§ 87(2)(g)
PO Sandoval’s BWC footage, which was comprehensive, did not capture PO Sandoval ever using the word, “fuck.” § 87(2)(g) it is therefore recommended that **Allegation A** be closed as **unfounded**.

It is undisputed that § 87(2)(b) was stopped – and ultimately issued summonses for violations related to his vehicle, and that § 87(2)(b) was not arrested at the conclusion of the incident. It is undisputed that PO Sandoval frisked § 87(2)(b) pant pockets, waistband, and legs.

§ 87(2)(g)
It is therefore recommended that **Allegation B** be closed as **substantiated**.

Allegation (C) Abuse of Authority: At 60 Moore Street in Brooklyn, Police Officer Jeremy Alexander damaged § 87(2)(b) property.

Allegation (D) Abuse of Authority: At 60 Moore Street in Brooklyn, Police Officer Eleni Karagkouni interfered with § 87(2)(b) use of a recording device.

§ 87(2)(b) testified (BR 02, BR 06-07) that he began filming on his cell phone as soon as PO Sandoval and PO Vazquez initiated the vehicle stop. After stepping out of the car, § 87(2)(b) continued to film on his cell phone as PO Sandoval conducted his frisk. § 87(2)(b) attempted to point the camera at the officers to capture their faces, but PO Alexander took his phone out of his hand and placed it on the top of § 87(2)(b) vehicle, slamming it down. PO Karagkouni then stopped § 87(2)(b) video recording by interacting with the digital interface of § 87(2)(b) phone. When PO Karagkouni handed § 87(2)(b) cell phone back to him, the screen near the camera was cracked and he believed that PO Alexander caused this because of how he placed the phone down.

At the time of the interview, § 87(2)(b) no longer possessed the damaged phone.

At 7:30 on the player timestamp of PO Vazquez's BWC footage (BR 08), § 87(2)(b) is outside, near the rear of his vehicle, and PO Sandoval is frisking him. At 7:35, PO Alexander takes § 87(2)(b) phone from his hand and places it on the roof of § 87(2)(b) vehicle. The phone makes a slight noise, but PO Alexander is not captured slamming the phone down. At 7:43, PO Karagkouni, who can be identified as the female officer on the back, right side of the screen, turns § 87(2)(b) phone over so that is facing up with the screen exposed. At 7:45, PO Karagkouni uses the digital interface of the phone to stop the video recording on § 87(2)(b) screen. § 87(2)(b) states, "She cut my phone off."

At 8:00 of the player timestamp of Sgt. Pellegrino's BWC footage (BR 09), § 87(2)(b) is inside the 90th Precinct stationhouse after he was released from the scene of this vehicle stop and describing the incident to Sgt. Pellegrino. At 8:15 on the player timestamp, § 87(2)(b) turns his phone around to show Sgt. Pellegrino the video taken during the incident. At 8:55 on the player timestamp, § 87(2)(b) cell phone video recording stops abruptly, consistent with PO Vazquez's BWC footage. § 87(2)(b) screen appears uncracked and there is no visible damage.

As the entirety of this portion of the incident was captured on BWC footage, PO Alexander was not interviewed for this investigation.

In her testimony (BR 10), PO Karagkouni did not dispute interacting with the digital interface of § 87(2)(b) phone to stop his video recording, as captured on PO Vazquez's BWC footage. PO Karagkouni stopped § 87(2)(b) recording because she believed at the time that § 87(2)(b) was under arrest as PO Sandoval grabbed § 87(2)(b) arms and PO Alexander removed the phone from § 87(2)(b) hands. PO Karagkouni did not observe PO Sandoval frisk § 87(2)(b). At the conclusion of the incident, PO Sandoval issued § 87(2)(b) a summons or summonses, but did not arrest § 87(2)(b).

NYPD Patrol Guide Procedure 203-29 (BR 11) states that individuals have a right to lawfully record police activity including but not limited to detentions, searches, arrests, or uses of force. This right to observe and/or record police action can be limited for reasons such as the safety of officers or other members of the public, or when a violation of law is committed by the individuals who are videotaping.

New York State Civil Rights Law 79-p (BR 12) states that person not under arrest or in the custody of a law enforcement official has the right to record law enforcement activity and to maintain custody and control of that recording and of any property or instruments used by that person to record law enforcement activities, provided, however, that a person in custody or under arrest does not, by that status alone, forfeit the right to have any such recordings, property and equipment maintained and returned to him or her. A claim of unlawful interference with recording a law enforcement activity is established under this section when a person demonstrates that he or she exercised or attempted to exercise the right established in subdivision two of this section to record a law enforcement activity and an officer acted to interfere with that person's recording of a law enforcement activity by intentionally preventing or attempting to prevent that person from recording law enforcement activity.

§ 87(2)(g)

PO Alexander was captured on PO Vazquez's BWC footage removing § 87(2)(b) phone from his hand, the manner in which PO Alexander puts the phone down was not consistent with a 'slamming' motion. The footage does not capture any audible indication that the phone was slammed down. Further, Sgt. Pellegrino's BWC footage captures § 87(2)(b) phone screen, which appears to be undamaged. § 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **unfounded**.

It is undisputed that PO Karagkouni stopped § 87(2)(b) video recording by interacting

with the digital interface of his phone, clearly captured on PO Vazquez's BWC and consistent with the cell phone video § 87(2)(b) displays in Sgt. Pellegrino's BWC. § 87(2)(g)

it is therefore recommended that **Allegation D** be closed as **substantiated**.

Allegation (E) Abuse of Authority: At 60 Moore Street in Brooklyn, Sergeant Andrew Hong threatened to issue a summons to § 87(2)(b).

Allegation (F) Abuse of Authority: At 60 Moore Street in Brooklyn, Police Officer Jeremy Alexander failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) testified that after PO Sandoval issued him the summonses, officers tried to place the paper copies inside § 87(2)(b) vehicle by sliding them through the vehicle's window. § 87(2)(b) then took the summonses out and placed them on the windshield of a police vehicle. Sergeant Hong then walked the summonses back to § 87(2)(b) car and again slid them through his open window. For a second time, § 87(2)(b) took the summonses out of his car and placed them on the windshield of a police vehicle. Sgt. Hong then told § 87(2)(b) "If you don't take the ticket and it ends up on the floor, you'll get a littering ticket." After some back and forth about the paper copies of the summonses, § 87(2)(b) stated, "Give me a business card, it's the law." When § 87(2)(b) made this request, he was directing it at PO Karagkouni, PO Sandoval, PO Vazquez, PO Alexander, and Sgt. Hong, all of whom were within earshot of the request. § 87(2)(b) received business cards from PO Sandoval, PO Karagkouni, PO Vazquez, and Sgt. Hong, but not PO Alexander.

At 20:00 on the player timestamp of Sergeant Hong's BWC footage (BR 13), PO Sandoval is captured slipping the summonses through § 87(2)(b) open vehicle door. § 87(2)(b) then takes the summonses and walks towards a police vehicle approximately twenty feet away, returning without the summonses. PO Sandoval hands the summonses to Sgt. Hong, who slides them through § 87(2)(b) vehicle window (21:12). § 87(2)(b) objects and again removes the summonses from his vehicle, walking back towards the police vehicle. The video does not capture where § 87(2)(b) places the summonses the second time. At no point in the footage is Sgt. Hong captured telling § 87(2)(b) that he would get a ticket for littering. The footage ends at 23:32 as Sgt. Hong drives away from the location.

By 28:30 on the player timestamp of PO Sandoval's BWC footage, (BR 03) the dispute over the paper copies of the summonses has already occurred. At 28:40, § 87(2)(b) is standing directly in front of PO Sandoval and PO Vazquez's police vehicle as the officers are getting inside. § 87(2)(b) turns to PO Sandoval and states, "Matter of fact, I need y'all business cards right now, both of y'all." At 29:00, PO Sandoval is captured writing on a business card and handing it to § 87(2)(b). § 87(2)(b) states, "Your partner [PO Vazquez] too." PO Vazquez then writes on a business card and provides it to § 87(2)(b) at 29:40. At 29:44, PO Alexander is captured standing next to PO Sandoval's police vehicle. § 87(2)(b) states, "I'll see y'all asses at your precinct." PO Alexander is captured stating, "Alright," offscreen and § 87(2)(b) gestures in his direction stating, "Not you brother, I'm not talking about you." PO Alexander is captured stating, "You have every right, just go to court."

As the entirety of this portion of the incident was captured via BWC, Sgt. Hong nor PO Alexander were interviewed for this investigation.

§ 87(2)(g)
Sgt. Hong's BWC which did not capture him making such a remark. As such, it is therefore recommended that **Allegation E** be closed as **Unfounded**.

§ 87(2)(g)

§ 87(2)(g) Sandoval's BWC footage, which captures § 87(2)(b) requesting business cards only from PO Sandoval and PO Vazquez, and specifically telling PO Alexander, "I'm not talking about you," as PO Alexander walks away. § 87(2)(g)

It is therefore recommended that **Allegation F** be closed as **Unfounded**.

Allegation (G) Abuse of Authority: At the 90th Precinct stationhouse, Sergeant Pasquale Pellegrino did not process § 87(2)(b) complaint regarding an officer.

§ 87(2)(b) testified that after the incident in front of 60 Moore Street concluded, he went to the 90th Precinct stationhouse to file a complaint against the officers involved. § 87(2)(b) spoke with Sgt. Pellegrino about the incident, during which time Sgt. Pellegrino told § 87(2)(b) that he could not file a complaint at the stationhouse, despite § 87(2)(b) insistence. Sgt. Pellegrino gave § 87(2)(b) the phone number for the CCRB and told him to file his complaint there. § 87(2)(b) stated that he already had the phone number for the CCRB and left the stationhouse without filing a complaint in-person.

Sgt. Pellegrino's BWC footage (BR 09) captures his interaction with § 87(2)(b) at the stationhouse. From 1:00-5:00, Sgt. Pellegrino and § 87(2)(b) are sitting together at a small table in the civilian waiting area of the stationhouse while § 87(2)(b) describes the vehicle stop. At 5:00, Sgt. Pellegrino states that if § 87(2)(b) wants to file a complaint, § 87(2)(b) can call the number for the CCRB. At 11:35, Sgt. Pellegrino tells § 87(2)(b) "You have all the information you need to take the complaint." At 16:16, Sgt. Pellegrino states, "I think we got the ball rolling on both ends. I appreciated what you showed and everything. When [the complaint] comes back, [the CCRB will] do what they gotta do." At 19:53, § 87(2)(b) leaves the stationhouse without Sgt. Pellegrino having filed § 87(2)(b) complaint.

NYPD Patrol Guide Procedure 207-31 (BR 14) states complaints against uniformed members of the service may be made at any patrol precinct, police service area, transit district, traffic unit, Internal Affairs Bureau, or any other office of the Department, including the Office of the Police Commissioner or office of a deputy commissioner. The Patrol Guide states that the procedure for processing a complaint from a civilian alleging misconduct by a uniformed member of service, is to report the complaint to the Civilian Complaint Review Board, except for complaints of corruption or other misconduct not within the jurisdiction of the Civilian Complaint Review Board, which should be referred to the Internal Affairs Bureau Command Center.

§ 87(2)(b)
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§ 87(2)(b)
§ 87(2)(b)

it is therefore recommended that **Allegation G** be closed as **miscellaneous – subject retired**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
§ 87(2)(b)
 - § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
 - § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
 - § 87(2)(b)
§ 87(2)(b)

- § 87(2)(b) [REDACTED]
- [REDACTED]
- PO Sandoval has been a member of service for two years and has been a subject in one CCRB complaint and one allegation, which was not substantiated. § 87(2)(g) [REDACTED]
- PO Karagkouni has been a member of service for two years and has been a subject in two CCRB complaints and five allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
- PO Alexander has been a member of service for four years and has been a subject in four CCRB complaints and eight allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
- Sgt. Hong has been a member of service for eleven years and has been a subject in seven CCRB complaints and 11 allegations, none of which were substantiated. § 87(2)(g) [REDACTED]

Mediation, Civil, and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- On March 7th, 2023, a request was sent to the NYC Comptroller's office for record of any Notice of Claim filed with the City of New York, the results of which will be added to the casefile upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 14

Investigator:	<u>C.V</u>	<u>Inv. Carlo Vescovi</u>	<u>03/26/2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Cassandra Fenkel</u>	<u>IM Cassandra Fenkel</u>	<u>03/27/2024</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date